

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.
Date purchased

TYREK LLOYD,

Plaintiff designates
County as the place of trial,

Plaintiff,

The basis of venue is
County in which causes of action arose

- against -

SUMMONS

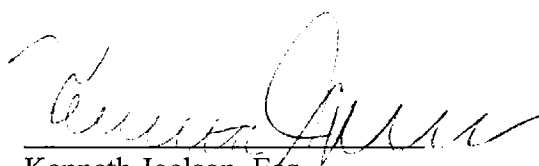
THE CITY OF NEW YORK and DETECTIVE
RANDY ROSE,

Defendants.

To the above named Defendants

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within **20** days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 8, 2018


Kenneth Joelson, Esq.
Law Office of Kenneth Joelson, PLLC
Attorney for Plaintiff
149 West 72nd Street
New York, New York 10023
(212) 873-7063

Defendants' Address:

*NYC - 100 Church Street, New York, New York 10007
Det. Rose - 164 East 102 Street, New York, New York 10029 (23rd Precinct)*

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TYREK LLOYD,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK and DETECTIVE
RANDY ROSE,

Defendants.
-----X

Plaintiff, Tyrek Lloyd, complaining of defendants, by his attorney, Kenneth Joelson, Esq., respectfully shows to this Court and alleges:

FIRST: At all times hereinafter mentioned, defendant, The City of New York, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

SECOND: At all times hereinafter mentioned, the New York City Police Department, was and still is an agency of the defendant, The City of New York, engaged in the practice of law enforcement.

THIRD: At all times hereinafter mentioned, the defendant, the City of New York, employed certain police officers as employees of the New York City Police Department.

FOURTH: At all times hereinafter mentioned, the defendant, Detective Randy Rose, was an employee of the New York City Police Department and defendant, The City of New York.

FIFTH: At all times hereinafter mentioned, the defendant, Detective Randy Rose, was issued shield number 1020.

SIXTH: On or about the 27th day of March, 2018, a Notice of Claim on behalf of the plaintiff was duly served upon the defendants, The City of New York and Detective Randy Rose, in compliance with General Municipal Law Section 50-e.

SEVENTH: More than 30 days have elapsed since the service of said Notice of Claim and adjustment or payment thereof has been neglected or refused.

EIGHTH: This action has been commenced within one year and ninety days after the happening of the events upon which these claims are based.

AS AND FOR A FIRST CAUSE OF ACTION

NINTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "EIGHTH" as if set forth herein at length.

TENTH: That on or about the 9th day of July, 2017, while plaintiff, Tyrek Lloyd, was lawfully in the vicinity of 2158 Second Avenue, in the County, City and State of New York, he was handcuffed, detained, arrested and taken into custody by certain employees of the New York City Police Department, including defendant, Detective Randy Rose, without just cause, reason or provocation and thereafter held in custody.

ELEVENTH: That at the time of said arrest and detention of plaintiff, defendant, Detective Randy Rose, and others were acting in their capacity as police officers employed by the New York City Police Department and defendant, The City of New York.

TWELFTH: That said arrest and detention of plaintiff was unjust, improperly investigated and without authority of law.

THIRTEENTH: That said arrest and detention of the plaintiff constituted intentional, wanton, careless, reckless and malicious conduct.

FOURTEENTH: That as a result of the aforesaid false arrest and illegal detention, plaintiff's health and earning capacity was impaired, he was caused to suffer great mental distress and his reputation and character was injured.

FIFTEENTH: That the amount of damages sought exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

SIXTEENTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "FIFTEENTH" as if set forth herein at length.

SEVENTEENTH: That subsequent to his arrest and detention, plaintiff, Tyrek Lloyd, was arraigned in Criminal Court and prosecuted thereafter for the crimes of attempted murder in the second degree, attempted assault in the first degree, criminal possession of a weapon in the second degree (2 counts) and reckless endangerment in the first degree under Criminal Court docket number 2017NY036824.

EIGHTEENTH: That said prosecution has been caused by the unjust, illegal and malicious acts of defendants, their agents and employees.

NINETEENTH: That on or about the 22nd day of February, 2018, the aforesaid charges were dismissed in Criminal Court, New York County, Part F.

TWENTIETH: That as a result of said unjust and malicious prosecution, the plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, humiliation and embarrassment and his reputation and character was injured.

TWENTY-FIRST: That said prosecution of the plaintiff, Tyrek Lloyd, constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

TWENTY-SECOND: That the amount of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

TWENTY-THIRD: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "TWENTY-SECOND" as if set forth herein at length.

TWENTY-FOURTH: As a result of the foregoing acts of the defendants, plaintiff has been deprived of his civil rights, privileges and immunities as secured pursuant to the United States and New York State Constitutions and other laws.

TWENTY-FIFTH: That said deprivation of plaintiff's civil rights constituted intentional, wanton, reckless and malicious conduct on the part of defendants.

TWENTY-SIXTH: That as a result of the aforesaid deprivation of rights, plaintiff's health was impaired, he suffered great and violent shock to his nervous system causing great mental distress, anxiety, depression, humiliation and embarrassment and his reputation and character was injured.

TWENTY-SEVENTH: That the amounts of damages sought exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

TWENTY-EIGHTH: Plaintiff repeats, realleges and reiterates each and every allegation contained in paragraphs "FIRST" through "TWENTY-SEVENTH" as if set forth herein at length.

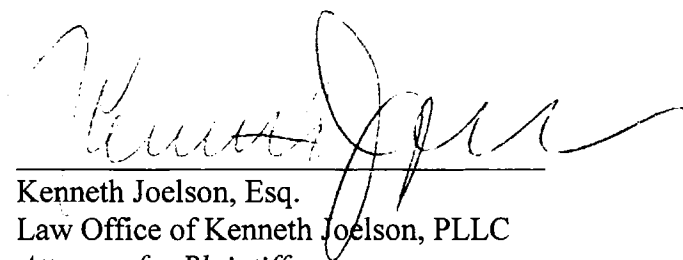
TWENTY-NINTH: The aforementioned acts in knowingly and purposely causing and perpetuating plaintiff's unlawful arrest, unlawful detention and unlawful prosecution were willful and malicious and were intended to cause plaintiff physical, mental and emotional illness, distress, fright, fear and shock as well as to conceal defendants' improper and illegal behavior and conduct.

THIRTIETH: That as a result of defendants' actions in intentionally inflicting mental distress, plaintiff has been caused to become sick, sore, lame and disabled as hereinbefore set forth.

THIRTY-FIRST: The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgement against defendants on the First Cause of Action, Second Cause of Action, Third Cause of Action and Fourth Cause of Action and Fifth Cause of Action, together with punitive damages, interest, costs and disbursements.

Dated: New York, New York
June 8, 2018



Kenneth Joelson, Esq.
Law Office of Kenneth Joelson, PLLC
Attorney for Plaintiff
149 West 72nd Street
New York, New York 10023
(212) 873-7063

ALL-STATE LEGAL®
07181-BF • 07182-BL • 07183-GY • 07184-WH
800.222.0510 www.allstatelegal.com

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TYREK LLOYD,

Plaintiff,

-against-

THE CITY OF NEW YORK and DETECTIVE
RANDY ROSE,

Defendants.

SUMMONS and VERIFIED COMPLAINT

LAW OFFICE OF KENNETH JOELSON, PLLC

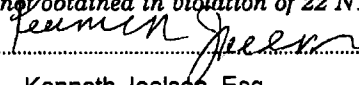
Attorneys for Plaintiff

149 WEST 72nd STREET
NEW YORK, N.Y. 10023
(212) 873-7063

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: June 8, 2018

Signature



Print Signer's Name Kenneth Joelson, Esq.

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

20

, at

M.

Dated: